

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DATED FILED:

-----X
CHRISTOPHER DAVIS

INDEX NO.:

Plaintiff,

against-

SUMMONS

Plaintiff designates
Bronx County as
Place of Trial based
on Plaintiff's
Residence

THE CITY OF NEW YORK, P.O.
CHRISTOPHER CICCULO Shield No. 6731
Defendants.

-----X
TO THE ABOVE NAMED DEFENDANT(S):

You are hereby summoned and required to serve upon plaintiff's attorneys an answer to the complaint in this action within twenty (20) days after the service of this summons, exclusive of the day of service, or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
March 9, 2015


YALKUT & ISRAEL
Attorneys for Plaintiff
865-B Walton Avenue
Bronx, New York 10451
718-292-2952

Defendants' Name and Address:

CITY OF N.Y. - 100 CHURCH STREET, N.Y., N.Y. 10007

P.O. CICCULO - 25th precinct - 120 E. 119th St., N.Y., N.Y. 10035

Notice: The nature of this action is Negligence, Personal injuries False Arrest, False Imprisonment, Civil Rights Violations

The Relief sought is Money damages

Upon your failure to appear, judgement will be taken against you by default in a sum within the jurisdictional limits of the Supreme Court and more than the jurisdiction of all inferior Courts.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

CHRISTOPHER DAVIS,

INDEX NO.

Plaintiff(s),

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. CHRISTOPHER
CICCOLO, Shield No. 6731

Defendant(s)

Plaintiff, as and for his/her Verified Complaint, by his/her attorney(s), Yalkut & Israel,
allege the following upon information and belief;

1. That at all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK
(hereinafter referred to as "CITY") was a municipal corporation duly organized and
existing pursuant to the laws of the State of New York;
2. A notice of claim was served upon defendant, CITY, within ninety(90) days of the
occurrence and/or accrual of the cause of action;
3. More than thirty(30) days have elapsed since presentation of said claim, and defendant,
CITY, has failed to adjust and /or dispose of the claim presented therein;
4. This action is commenced within one year and ninety days of the date of the incident
and/or accrual of the cause of action;
5. That at all times hereinafter mentioned, Defendant, "CITY", owns THE NEW YORK
CITY POLICE DEPARTMENT, "POLICE"as a subsidiary;
6. That at all times herein mentioned, the Plaintiff resides in the County, City and State of
New York;
7. That at all times hereinafter mentioned, Defendant, "CITY", owns, maintains, manages,

operates and controls "POLICE";

8. That at all times hereinafter mentioned, the Defendants P.O. CHRISTOPHER CICCULO "CIPPOLO" and P.O.s "JOHN DOE" # 1&2 were employees of the Defendants "CICCULO" and P.O.s "JOHN DOE" # 1&2;
9. That at all times hereinafter mentioned, defendants "CICCULO" and P.O.s "JOHN DOE" # 1&2 were acting with the knowledge and consent of their employers.

FIRST CAUSE OF ACTION-FALSE IMPRISONMENT:

10. On April 23, 2014 at approximately 9:30 pm of that day the plaintiff was lawfully stopped in his vehicle waiting for a parking spot in front of his place of residence, 107-129 East 126th Street, County, City and State of New York. As traffic was building up, the Plaintiff pulled the car forward to the corner of Park Avenue and pulled to the curb by a fire hydrant with the motor running. The Defendants "CICCULO" and P.O.s "JOHN DOE" # 1&2 approached and ordered the Plaintiff out of his vehicle. Two officers interviewed the Plaintiff and one searched the vehicle. One of the officers placed a substance into the Plaintiff's pocket, removed same from his pocket, cuffed the Plaintiff.
11. Plaintiff was lawfully at said location.
12. Plaintiff was falsely imprisoned at both the scene of the occurrence and continuing thereafter at the 25th Precinct and thereafter at Central Booking and Criminal Court. The Plaintiff was not released until approximately 9 pm April 27, 2014.
13. As a result of the aforementioned, plaintiff suffered emotional trauma, feared for his life, sustained other consequential damages.
14. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.

15. The criminal action against the Plaintiff was disposed of as follows: Dismissed February 25, 2015 as time to prosecute expired.
16. As a result of the foregoing, plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SECOND CAUSE OF ACTION-FALSE ARREST

17. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "16" herein as if more fully set forth at length:
18. Plaintiff was, without cause or provocation, falsely arrested.
19. As a result of the foregoing, plaintiff suffered emotional trauma, fear for his life sustained other consequential damages.
20. Plaintiff intend to claim punitive damages for all of the causes of action interposed herein.
21. As a result of the foregoing, plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

THIRD CAUSE OF ACTION-MALICIOUS PROSECUTION

22. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "21" herein as if more fully set forth at length:
23. Defendants maliciously prosecuted criminal charges against Plaintiff, as a proper investigation would reveal the charges to be false and unfounded.
24. As a result of the foregoing, plaintiff suffered emotional trauma, sustained severe and consequential damages.

25. Plaintiffs intend to claim punitive damages for all of the causes of action interposed herein.
26. As a result of the foregoing, plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts..

FOURTH CAUSE OF ACTION-NEGLIGENT TREATMENT:

27. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "21" herein as if more fully set forth at length:
28. At the aforementioned time and place, plaintiff was negligently treated by various police officers employed by the defendant, CITY OF NEW YORK.
29. Said police officers were acting within the course and scope of their employment with defendants.
30. Plaintiffs intend to claim punitive damages for all of the causes of action interposed herein.
31. As a result of the foregoing, plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

FIFTH CAUSE OF ACTION-INVASION OF PRIVACY:

32. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "31" herein as if more fully set forth at length:
33. The aforementioned occurrence constituted an invasion of the privacy of plaintiff.
34. As a result of the foregoing, Plaintiff sustained severe and serious personal injuries and other consequential damages.

35. Plaintiffs intend to claim punitive damages for all of the causes of action interposed herein.
36. As a result of the foregoing, plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SIXTH CAUSE OF ACTION-CIVIL RIGHTS VIOLATION:

37. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "36" herein as if more fully set forth at length:
38. As a result of the aforementioned occurrence, plaintiff was deprived of his civil rights under the Constitution of the State of New York and the Constitution of the United States, as well as other State ordinances statutes, codes and rules, including but not limited to 42 USC §1981, §1983, §1985 §1988 and 28 USC § 1343.
39. As a result of the foregoing, Plaintiff suffered serious other consequential damages.
40. Plaintiff intend to claim punitive damages for all of the causes of action interposed herein.
41. As a result of the foregoing, plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

SEVENTH CAUSE OF ACTION-NEGLIGENCE

42. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "41" herein as if more fully set forth at length:
43. The defendant, "CITY" and its subsidiary "POLICE" were negligent in their hiring and training practices and procedures. A proper investigation prior to hiring would have

revealed that the defendants "CICCOLO" and P.O.s "JOHN DOE" # 1&2; were not qualified to assume the responsibilities of the job hired for. In addition had there been a proper training program the aforementioned the defendants "CICCOLO" and P.O.s "JOHN DOE" # 1&2; would not have been retained;

44. As a result of the foregoing, Plaintiff suffered emotional trauma, sustained severe and serious other consequential damages.
45. Plaintiff intends to claim punitive damages for all of the causes of action interposed herein.
46. As a result of the foregoing, plaintiff has been damaged in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

EIGHTH CAUSE OF ACTION-PRIMA FACIE TORT

47. Plaintiff repeats, reiterates and re-alleges the allegations contained in Paragraphs "1" through "46" herein as if more fully set forth at length.
48. Defendants solely to harm plaintiff and without justification, intentionally manhandled and wrenched and/or otherwise acted to harm said plaintiff, causing pecuniary loss to plaintiff.
49. The plaintiff is seeking compensatory damages in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.
50. The plaintiff is seeking punitive damages in a sum within the Jurisdictional limits of The Supreme Court and in excess of the Jurisdictional limits of all inferior Courts.

NINNTH COUNT MUNICIPAL LIABILITY

51. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in

paragraphs "1" through "51" as if the same were more fully set forth at length herein.

52. Defendants imprisoned and detained the Plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said imprisonment and detention would jeopardize plaintiffs liberty, well being, safety and constitutional rights.
53. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.
54. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department., all under the supervision of ranking officers of said department.
55. . The aforementioned customs, policies. usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
 - a) fabricating evidence against innocent persons erroneously arrested;
 - b) imprisoning innocent persons wrongfully apprehended;
 - c) Imprisoning innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing.
56. The existence of the aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct. as documented in the following civil rights actions filed against the City of New York:
 - **Frank Douglas v. City of New York.**, United States District Court Southern District of New York, 03 CV 6475;
Darnell Flood v. City of New York., United States District Court, Southern District of New York. 03 CV 10313;
Theodore Richardson v. City of New York. et al., United States District Court, Eastern District of New York, 02 CV 3651;
Phillip Stewart v. City of New York., United States District Court, Southern

District of New York, 05 CV 2375;

Benjamin Taylor v. City of New York, United States District Court, Eastern

District of New York, 01 CV 5750;

Angel Vasquez v. City of New York, United States District Court, Eastern

District of New York, 05 CV 3552;

- **Alvin Williams v. City of New York**, United States District Court, Southern

District of New York, 05 CV 4013;

Terrence Burton v. City of New York, United States District Court,

District of New York, 06 CV 6884.

57. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted a deliberate indifference to the safety, well-being and constitutional rights of plaintiff
58. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.
59. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.
60. As result of the foregoing custom, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was imprisoned unlawfully for several days.
61. Defendants, collectively and individually, while acting under color of State Law, were directly and actively involved in violating the constitutional rights of plaintiff,
62. Defendants, collectively and individually, while acting under color of State Law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and

were directly responsible for the violation of the plaintiff's constitutional rights.

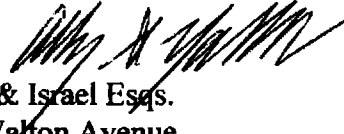
63. All of the foregoing acts by the defendants deprived the plaintiff of federally protected rights, including but not limited to:

- . Not to be deprived of liberty without due process of law.
- . Not to fabricate evidence.
- . To be free from seizure and imprisonment not based upon probable cause.
- . To be free from unwarranted and malicious detention.
- . Not to have cruel and unusual punishment imposed upon him/her; and
- . To receive equal protection under the law.

64. The plaintiff intends to seek punitive damages on all counts herein.

.65. The plaintiff seeks damages in a sum within the jurisdictional limits of The Supreme Court and in excess of the jurisdictional limits of all inferior Cour

WHEREFORE, Plaintiff demand judgment against the defendants on each of the
aforementioned Causes of Action as follows, together with the costs and disbursements of this
action:

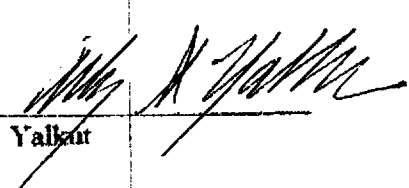

Yalkut & Israel Esqs.
865B Walton Avenue
Bronx, New York 10451
718 292-2952
718 993-1542 (fax)

STATE OF NEW YORK
COUNTY OF BRONX

Arlen S. Yalkut an attorney duly admitted to practice law before the Courts of the State of New York, affirms the following upon information and belief and with knowledge of the penalties of perjury:

1. Affirmant is a partner with the law firm Yalkut & Israel, attorneys for the Plaintiff in the within action;
2. Affirmant has read the foregoing Summons and Complaint, knows the contents thereof, and same are true to his own knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true;
3. Affirmant further states that the reason this affirmation is made by the undersigned and not by the party/parties is that such party/parties do not reside or have a place of business in the county wherein affirmant maintains his offices;
4. The grounds for affirmant's belief as to all matters not stated to be upon affirmant's knowledge are the documents, papers and data contained in the file pertaining to this matter.

Affirmed: Bronx, N.Y.
March 30, 2015


Arlen S. Yalkut

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.

CHRISTOPHER DAVIS

Plaintiff,

-against-

THE CITY OF NEW YORK, .P.O. CHRISTOPHER CICOLOO, Shield No. 6731

Defendant(s)

SUMMONS AND VERIFIED COMPLAINT

YALKUT & ISRAEL
Attorneys for Plaintiff(s)
865-B Walton Avenue
Bronx, New York 10451
718 292-2952
718 993-1542 (Fax)

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State certifies that upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: March 9, 2015

Signature:

Print Signature Name: ARLEN S. YALKUT

TO:

Attorney(s) for

Service of a copy of the within
admitted.

is hereby

Dated:

Attorney(s) for

PLEASE TAKE NOTE

that the within is a (certified copy of a
entered in the Office of the Clerk of the within named court on
that an order of which the within is a true copy will be presented for settlement
to the Hon. , one of the judges of the within named court,
on , 20 , at M.

20

YALKUT & ISRAEL
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